

PERFORMANCE WORK STATEMENT (PWS)

For NCETR Explosives Enforcement and Training Division Explosives Relief of Disabilities Investigation Support Services

1.0 Introduction

1.1 Organizational Overview

This requirement is in support of the **Department of Justice (DOJ), Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF), Office of Field Operations (FO), National Center for Explosives Training and Research (NCETR), Explosives Enforcement and Training Division (EETD).**

The EETD requires contract support services for the investigation and processing of Explosives Relief of Disabilities (EROD) applications. Services to be provided under this contract include:

- Special investigative services;
 - Associated travel; and
 - Administrative support.
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1.2 Background

1.2.1 Statutory and Regulatory Authority

The Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) is a law enforcement bureau within the Department of Justice (DOJ). ATF is responsible for reducing violent crime, protecting the public, and enforcing Federal laws relating to alcohol, tobacco, firearms, explosives, and arson.

ATF enforces Federal statutes including:

- The Organized Crime Control Act of 1970 (OCCA);
- The Safe Explosives Act of 2002 (SEA); and
- The Gun Control Act of 1968 (GCA).

The SEA amended the OCCA to expand the categories of persons prohibited from transporting, shipping, receiving, or possessing explosive materials under 18 U.S.C. § 842(i), and expanded eligibility for relief from Federal explosives disabilities.

Under 18 U.S.C. § 842(i), prohibited persons include, but are not limited to, individuals who:

- Are under indictment for or convicted of a crime punishable by imprisonment for a term exceeding one year;
- Are fugitives from justice;
- Are unlawful users of or addicted to controlled substances;
- Have been adjudicated as a mental defective or committed to a mental institution;
- Are prohibited aliens (with statutory exceptions);
- Were discharged from the Armed Forces under dishonorable conditions; or
- Have renounced U.S. citizenship.

Under 18 U.S.C. § 922(g) and (n), the GCA similarly identifies categories of persons prohibited from possessing firearms or ammunition, with relief provisions under 18 U.S.C. § 925(c) subject to congressional funding limitations.

1.2.2 Program Authority

Pursuant to ATF O 1100.168C (Delegation of Authorities), and 27 CFR §§ 555.142 and 478.144, the Chief, EETD, is authorized to grant relief to qualified applicants when it is determined that:

- The applicant is not likely to act in a manner dangerous to public safety; and
- Granting relief is not contrary to the public interest.

The Explosives Relief of Disabilities Program within EETD manages:

- Receipt and processing of relief applications; and
- Field investigations necessary to support adjudication decisions.

All investigative assignments shall be conducted in accordance with:

- The EROD Special Investigator (SI) Manual; and
- Applicable ATF policies and procedures.

Contract investigators under this contract shall be referred to as “Special Investigators” (Contractors).

Contractors are not authorized to carry a firearm while performing duties under this contract.

2.0 General Agreement Terms

2.1 Contract Type

This requirement shall be awarded as a Firm-Fixed-Price (FFP) contract in accordance with Federal Acquisition Regulation (FAR) 48 CFR 16.202.

This PWS defines the services, performance standards, security requirements, and deliverables applicable to contractor performance.

2.2 Tasking and Assignment of Orders

- Orders issued under this contract shall be generated by ATF.
- Investigative services to be performed shall be identified and directed by the EETD.
- Each order shall define the scope, deliverables, and due date.

The Contractor shall perform only those services authorized by official tasking.

2.3 Oversight and Contract Administration

Contract performance shall be monitored and overseen by an authorized ATF representative, including:

- The Contracting Officer (CO); and/or
- The Contracting Officer's Representative (COR).

The Contractor shall comply with:

- All applicable Federal laws and regulations;
- ATF policies and procedures; and
- Any contract modifications issued by the CO.

The Government reserves the right to modify contract requirements to reflect changes in Federal law, regulation, investigative policy, training requirements, or security procedures.

All formal modifications shall be issued in writing by the CO.

2.4 Legal Proceedings and Testimony

Contractors may be:

- Subpoenaed; and/or

- Requested to testify

regarding investigative work performed under this contract.

The Contractor shall make reasonable efforts to comply with such requests.

Contractors shall not serve as expert witnesses or consultants against ATF in matters related to information obtained through performance of this contract, unless required by law.

2.5 Effective Date of Contract

The contract shall become effective on the date it is signed by both parties. If signed on different dates, the effective date shall be the date of the final signature.

3.0 Contractor Qualifications and Performance Requirements

3.1 Personnel Security and Experience Requirements

3.1.1 Security Clearance

The Contractor shall ensure that all personnel assigned to perform work under this contract:

- Are eligible for and capable of maintaining a Top-Secret security clearance throughout the period of performance.
- Immediately report any change in clearance status that may affect eligibility to perform under this contract.

Performance Standard:

- 100% of assigned personnel shall maintain the required clearance for the duration of task performance.

3.1.2 Minimum Experience Requirements

The Contractor shall assign personnel who meet the following minimum qualifications:

- A minimum of three (3) years of current experience conducting:
 - Explosives Relief of Disabilities investigations, and
 - Criminal investigations, and/or

- Personnel investigations.

Additionally, personnel must meet one of the following education/experience combinations:

Option A:

- A bachelor's degree from an accredited institution;
OR

Option B:

- Four (4) years of general experience;
AND
- Four (4) years of specialized experience within the last five (5) years;
OR
- One (1) year of specialized Federal investigative experience.

Definition – General Experience:

Progressively responsible experience demonstrating the ability to:

- Analyze and solve problems;
- Identify significant factors in investigative matters;
- Gather and evaluate relevant data;
- Recognize and recommend solutions;
- Plan and organize work effectively; and
- Communicate professionally, both orally and in writing.

Performance Standard:

- 100% of personnel assigned shall meet the minimum qualification requirements prior to assignment.
- Documentation of qualifications shall be provided to the Government upon request.

3.2 Functional and Technical Capabilities

3.2.1 Investigative Capability

The Contractor shall ensure personnel possess sufficient investigative skills and abilities to independently perform investigative orders assigned by the EETD.

Performance Standard:

- Assigned personnel shall competently execute investigative tasks without requiring remedial instruction beyond standard Government-provided guidance.
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3.2.2 Computer Literacy and Systems Use

The Contractor shall ensure personnel are:

- Computer literate and proficient in software applications supporting:
 - Email communication,
 - Word processing,
 - Electronic data entry, and
 - Electronic report submission.
- Capable of receiving assignments electronically and submitting completed Reports of Investigation (ROI) through designated systems.

Contractor personnel shall:

- Utilize personal automobiles, information technology equipment, and facilities as necessary to perform assigned duties.
- Use an ATF-issued laptop when performing ATF assignments.
- Comply with all policies governing access to and use of the ATF case management system, if granted access.

Performance Standards:

- 100% of investigative reports shall be submitted electronically in the required format.
 - Personnel shall comply with all Government IT security and usage policies.
 - No unauthorized access or misuse of Government systems shall occur.
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3.3 Professional Conduct and Appearance

When performing work on behalf of the EETD, Contractor personnel shall conduct themselves in a manner that reflects positively on ATF.

Personnel shall:

- Maintain professional behavior at all times while on duty.
- Present a neat and professional appearance.
- Wear attire appropriate to the investigative environment and assignment.

Performance Standards:

- Contractor personnel shall demonstrate professional demeanor in all interactions with Government personnel, witnesses, and members of the public.
- Failure to maintain professional standards of conduct or appearance may result in removal from the assignment at the discretion of the Government.

4.0 Scope of Work, Assignment of Orders, and Deliverables

4.1 Compliance with Standards, Policies, and Procedures

By acceptance of this contract, the Contractor agrees to comply with all applicable standards, policies, and procedures governing Explosives Relief of Disabilities (EROD) Special Investigations (SI), including but not limited to:

- The EROD SI Manual; and
- Any supplemental guidance, correspondence, or policy directives issued by the EETD.

The Contractor shall perform all assigned investigative tasks in strict accordance with the most current versions of these governing documents.

Performance Standards:

- 100% of investigative activities shall conform to the requirements outlined in the EROD SI Manual and EETD-issued guidance.
- No deviations from prescribed procedures shall occur without prior written authorization from the EETD.

Government Right of Review:

- The Government reserves the right to review investigative work products to ensure compliance with applicable policies and procedures.
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4.2 Use of EROD SI Manual and Required Templates

The EROD SI Manual shall be provided electronically to the Contractor via access to the designated shared drive using the Contractor's ATF-issued laptop.

The Contractor shall:

1. Access and maintain familiarity with the current version of the EROD SI Manual.
2. Utilize all required worksheets and templates contained within the Manual when performing assigned investigations.
3. Complete each assigned order in accordance with:
 - The investigative procedures outlined in the EROD SI Manual; and
 - Any additional templates or instructions provided with the specific order.

Performance Standards:

- 100% of investigative assignments shall be completed using the required worksheets and templates.
- All submitted deliverables shall conform to formatting and procedural requirements specified in the EROD SI Manual.
- Work products shall be complete, accurate, and submitted in the format required by the EETD.

Deliverables:

- Completed investigative documentation and Reports of Investigation (ROI), prepared in accordance with the EROD SI Manual and any order-specific instructions.
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4.3 Investigative Activities and Documentation

The Contractor shall:

1. Conduct interviews as required by assigned investigations.
2. Accurately document and maintain detailed notes of all interviews conducted.

3. Review all relevant records, files, and supporting documentation associated with assigned cases.
4. Reduce all investigative notes and record reviews into a formal written Report of Investigation (ROI).

Performance Standard:

- Interviews shall be thorough, objective, and properly documented.
- Notes shall be accurate, complete, and sufficient to support investigative findings.
- The ROI shall clearly present findings of fact and be based solely on documented evidence gathered during the investigation.

Deliverable:

- A completed ROI for each assigned case submitted by the established due date.
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4.4 Case Assignment and Reporting

4.4.1 Point of Contact (POC)

The Contractor shall designate a single Point of Contact (POC) responsible for:

- Assigning each case for investigation based on geographical availability.
- Ensuring assignments adhere to travel guidance specified in Section 17 of this contract.
- Serving as the primary liaison between the Contractor and the EETD.

All investigative questions shall be filtered through the designated POC to the EETD.

4.4.2 Monthly Reporting

The Contractor shall submit monthly status reports to the EETD beginning on a mutually agreed-upon date following contract acceptance.

At a minimum, each monthly report shall include:

- Case name
- Case number
- Status of investigation

The Contractor shall also provide ad hoc reports upon request by the EETD.

Performance Standard:

- Reports shall be accurate, complete, and submitted on time.
- Case assignments shall reflect geographic efficiency and compliance with travel policy.

Deliverables:

- Monthly status report
 - Ad hoc reports as requested
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4.5 Work Assignment Completion and Due Dates

Work assignments associated with each order shall be completed by the due date established by the EETD.

- The standard due date for submission of the ROI shall typically be 30 calendar days from the date of assignment unless otherwise specified.
- If the Contractor determines that the established due date cannot be met, the Contractor shall submit a written request for an extension to the EETD prior to the due date.
- Extensions must be approved by the EETD in writing.

Performance Standards:

- 100% of ROIs shall be submitted by the established due date unless a written extension has been approved.
- ROIs shall meet quality and completeness standards as determined by the EETD.

Remedies for Non-Performance:

- Failure to obtain an approved extension prior to the due date may result in reduced or non-payment for the affected assignment.
 - Repeated failure to submit ROIs by required due dates may constitute grounds for termination of the contract.
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4.6 Investigative Deliverables

Upon completion of each investigative assignment, the Contractor shall submit the following to the EETD in accordance with the EROD SI Manual, applicable policies, and Standard Operating Procedures (SOPs):

1. A completed Report of Investigation (ROI); and
2. All required attachments referenced in the ROI or otherwise required for inclusion in the investigative file.

Performance Standards:

- 100% of required deliverables shall be submitted.
 - Deliverables shall conform to formatting, documentation, and procedural requirements.
 - Submissions shall be complete and factually accurate.
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4.7 Records Submission and File Destruction

The Contractor shall:

- Scan all attachments and upload them into the case management system (CMS) as source documents.
- Forward hard copies of documents obtained during the investigation to EETD via Federal Express.
- Destroy all contractor work files within 30 calendar days of final determination notification.
- Notify the COR in writing of the date and method of file destruction.

Performance Standards:

- All electronic documents shall be properly uploaded prior to case closure.
 - Hard copy materials shall be transmitted within required timelines.
 - File destruction shall comply with ATF information protection requirements.
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4.8 Quality Review of Submissions

Prior to submission, the Contractor shall review all ROIs and related documentation to ensure:

- Factual accuracy;

- Compliance with assignment requirements;
- Proper formatting in accordance with EETD procedures; and
- Reports are free of grammatical, formatting, or substantive errors.

All reports shall objectively present investigative findings.

Performance Standard:

- 100% of reports shall meet quality and compliance requirements upon submission.
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4.9 Corrective Action

If investigative assignments or reports fail to meet EETD standards, the Contractor shall:

- Make required corrections;
 - Provide clarifications; and
 - Complete any omitted investigative work at no additional cost to the Government.
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4.10 Administrative Review Support

The Contractor may be required to perform Full-Day or Half-Day administrative support to:

- Review closed assignments in CMS; and
 - Ensure required documentation is present prior to archival.
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5.0 Period of Performance

The contract shall consist of:

- One (1) Base Year; and
 - Four (4) Option Years.
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6.0 Other Direct Cost

- Travel and per diem will be reimbursed in accordance with FAR and Federal Travel Regulations (FTR).

7.0 Credentials

Contractor personnel performing Relief of Disabilities Program duties shall be issued official ATF credentials.

The Contractor shall ensure:

- Credentials are used solely for official purposes.
- Credentials are safeguarded at all times.
- Credentials are never photocopied.
- Lost or stolen credentials are immediately reported in accordance with policy.

Improper use may result in termination.

8.0 Personal Identity Verification (PIV)

Contractors shall:

- Obtain and maintain a DOJ-issued PIV card in compliance with HSPD-12.
- Protect and maintain control of their assigned PIN.
- Complete required enrollment and activation procedures.
- Bear costs associated with PIN resets and periodic recertification (every 3 years) and renewal (every 5 years).

Failure to comply may result in loss of system access.

9.0 Background Investigation Requirements

Contractors shall:

- Successfully complete and maintain a favorably adjudicated Tier 5 (T5) Background Investigation.
- Complete required security documentation.
- Comply with ATF conduct and integrity guidelines.

Failure to obtain or maintain favorable adjudication may result in disqualification and denial of access.

ATF will conduct periodic reinvestigations every five (5) years.

10.0 Government Furnished Property (GFP)

ATF will provide:

- ATF-issued laptop computer;
- Network and CMS access;
- Contractor credentials; and
- DOJ PIV card.

Contractor Responsibilities:

- Use ATF laptop exclusively for ATF work.
- Log in weekly to maintain security updates.
- Maintain secure broadband access at own expense.
- Protect and safeguard equipment.
- Return all property upon contract completion.
- Reimburse ATF for lost, stolen, or damaged equipment.

Travel for technical repair requires prior EETD approval.

11.0 Facilities

The Contractor shall utilize private facilities for investigative activities and report preparation. ATF shall not reimburse facility-related costs.

12.0 Mandatory Training

The Contractor shall:

- Complete all required EETD and DOJ training prior to assignment.
- Complete annual Information Security Awareness training.

- Complete required non-disclosure training.

Training is mandatory and non-reimbursable.

13.0 Contractor Certification

The Contractor shall sign a certification affirming that all investigative work and reports:

- Reflect actual work performed; and
 - Comply with contract requirements.
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14.0 SAM and Registration Requirements

The Contractor shall:

- Maintain active registration in SAM.
- Maintain DUNS registration.
- Ensure registration information remains current.

Failure to maintain active registration may result in non-payment or suspension of assignments.

15.0 Protection of Sensitive Information

The Contractor shall:

- Safeguard all investigative data and work product.
- Protect sensitive unclassified information from unauthorized disclosure.
- Store files and ATF laptop in locked containers when not in use.
- Not reassign investigative work to others.
- Not transmit sensitive information via unsecured systems.

All investigative materials are ATF property.

16.0 Payment and Reimbursement

ATF shall reimburse:

- Fixed rate for completed investigations;
- 50% rate for terminated investigations;
- Fixed daily or half-day administrative rates (if applicable);
- Travel per FTR and FAR 31.205-46.

No profit or administrative fee shall apply to travel.

17.0 Travel Requirements

Travel shall:

- Be pre-approved by CO or COR;
- Meet FTR requirements;
- Be submitted for approval five (5) business days prior to travel;
- Include required travel details and cost breakdown;
- Exclude commuting costs and non-allowable expenses.

Mileage shall be reimbursed at prevailing GSA rates, less normal commuting distance.

18.0 Performance and Quality Control

The COR shall monitor contractor performance.

ATF may:

- Modify contract requirements to comply with evolving Federal policy;
- Conduct surveys of individuals interviewed;
- Issue warning notices;
- Terminate the contract for poor performance or misconduct.

Fraudulent invoicing shall be referred to the DOJ Office of Inspector General.

19.0 Invoicing Requirements

Contractors shall:

- Submit electronic invoices monthly;
- Identify invoices by CLIN;
- Comply with FAR 32.905;
- Include required invoice certification;
- Provide detailed cost breakdowns;
- Notify CO at 85% funding threshold.

Invoices shall be submitted to the designated ATF finance email with copy to COR and CO.

20.0 Invoice Certification and Acceptance

Payment shall be made upon:

- COR certification of acceptance; and
- Submission of a proper invoice.

Final payment shall be made upon Government acceptance of final deliverables.